

26NNCV02572 26NNCV02572

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-09-01

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#19 - NASHAT METRI vs RUDY RODRIGUEZ, et al.

CASE MANAGEMENT CONFERENCE

On its own motion, the Case Management Conference is continued to November 19, 2026 at 8:30 a.m. in Department X.

DEMURRER AND MOTION TO STRIKE

The demurrer is SUSTAINED WITH LEAVE TO AMEND.

Plaintiff's complaint alleges a single cause of action identified as "Intentional Tort" against Defendants Rudy Rodriguez and Fatima Maria Pacheco Molina Chirla. Plaintiff alleges that, on March 5, 2026, Rodriguez approached Plaintiff outside Plaintiff's mother's property after being "sent by" Pacheco, punched Plaintiff in the face and throat, and caused Plaintiff to lose consciousness and require hospitalization.

The complaint

sufficiently identifies the alleged direct tortfeasor and the physical conduct attributed to him. It does not, however, allege that Pacheco personally struck Plaintiff. Its only allegation connecting Pacheco to the incident is that Rodriguez was "sent by" her. That allegation does not identify what Pacheco allegedly sent Rodriguez to do. The demurrer is sustained.

The motion to strike is GRANTED.

In an action seeking

actual or punitive damages for personal injury, the complaint must not state the amount demanded. (Code Civ. Proc., § 425.10(b).) Instead, the amount may be disclosed through a statement of damages under Code of Civil Procedure section 425.11. Here, Plaintiff designated this action as one for personal injury but stated a demand for \$500,000 in

paragraph 14. The stated amount is therefore not drawn in conformity with section 425.10(b), and must be stricken.

Plaintiff may file
and serve a first amended complaint within 20 calendar days after service of notice of this ruling.

Court is to give notice.